

25NWLC48271 25NWLC48271

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-03

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Case Number: 25NWLC48271 Hearing Date: August 3, 2026 Dept: Y

25NWLC48271: LVNV FUNDING LLC vs MALERIE GOMEZ

Tentative Ruling:

Defendant Malerie M. Gomez ("Defendant") has filed and served the following four motions:

(1) Motion for Order Deeming Matters Admitted (RFA Motion). On July 9, 2026, Defendant filed and served the RFA Motion on Plaintiff via U.S. Mail. The hearing for this Motion is scheduled on August 3, 2026.

(2) Motion to Compel Response to Special Interrogatories (Motion to Compel – Special Interrogatories). On July 13, 2026, Defendant filed her Motion to Compel – Special Interrogatories. Defendant served this motion on Plaintiff via U.S. Mail on July 12, 2026. The hearing for this Motion is also scheduled on August 3, 2026.

(3) Motion for Order Compelling Responses to Request for Production (Motion to Compel – Document Requests). On July 13, 2026, Defendant filed her Motion to Compel – Document Requests. Defendant served this motion on Plaintiff via U.S. Mail on July 12, 2026. The hearing for this Motion is also scheduled on August 3, 2026.

(4) Motion for Continuance of Trial Date and Extension of Discovery Cutoffs (Motion for Trial Continuance). On July 15, 2026, Defendant filed her Motion For Trial Continuance. Defendant served this motion on Plaintiff via U.S. Mail on July 14, 2026. The hearing for this Motion is scheduled on August 5, 2026.

Code of Civil Procedure section 1005 requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing. . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and place of address are within the State of California."

It does not appear that proper notice has been given on the four motions filed by Defendant. For the motions set for hearing on August 3, 2026, Defendant should have served the motions on Plaintiff on or before July 2, 2026. For the motion set for hearing on August 5, 2026, Defendant should have served that motion on Plaintiff on or before July 10, 2026. Accordingly, the Court will continue the hearing on the motions so that proper notice of the motions can be given to Plaintiff. The motions will be continued and scheduled as follows:

The hearing on the RFA Motion will be scheduled on September 3, 2026 at 10:30 a.m. in Dept. Y.

The hearing on the Motion to Compel – Document Requests will be scheduled on September 10, 2026 at 10:30 a.m. in Dept. Y.

The hearing on the Motion to Compel – Special Interrogatories will be scheduled on October 2, 2026 at 10:30 a.m. in Dept. Y.

On its own motion, the Court will also advance and vacate the trial date on August 28, 2026. The Court sets a new trial date on May 7, 2027 at 8:30 a.m. in Dept. Y. The Court's continuance of the trial date moots Defendant's Motion for Trial Continuance, which is scheduled for hearing on August 5, 2026. The Court expects that Defendant will take that motion off calendar.

Clerk to give notice.